NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT – I)

Item No. 103

CP(CAA)No.45/Chd/Pb/2025
(2nd Motion)

IN THE MATTER OF:

Nav Auxichem Private Limited ....Transferor Company

And

Perfect Belts Pvt. Ltd. .....Transferee Company

Under Sections: 230-232 CA 2013

Order delivered on 17.04.2026

CORAM:

SHRI. SHISHIR AGARWAL
HON'BLE MEMBER (T)

SHRI. K. BISWAL,
HON'BLE MEMBER (J)

PRESENT:-

For the Petitioner:	Mr. Karanveer Jindal, Advocate
For the OL:	Mr. Edward George Augustine, Advocate
For the RD Office, Chandigarh:	Dr. Kishore Kumar Dewarwade, Assistant Director
For Income Tax Department:	Mr. Varun Issar, Senior Standing Counsel

ORDER

1. Mr. Karanveer Jindal, learned counsel for the Petitioner-Company attends online and explains the case.
2. Learned counsel for the Petitioner states that the reports from different statutory authorities have been received and they have not given any specific objection against the proposed scheme.

3. This was confirmed by Mr. Varun Issar, learned Senior Standing Counsel for the Income Tax Department and Mr. Edward George Augustine for the Official Liquidator.
4. Dr. Kishore Kumar Dewarwade, Assistant Director from Regional Director Office attends and stated that there was an observation in the report that the appointed date is stated to be 01.04.2023, however the petition was originally filed on 30.05.2024. The reasons to the same are not stated in the application.
5. Mr. Karanveer Jindal, Advocate, explained that the appointed date was taken as 01.04.2023 because the last available audited balance sheet was as on 31.03.2023.
6. In response, Dr. Kishore Kumar Dewarwade stated that their office has no further observation in the matter.
7. Accordingly, **Order Reserved**.

Sd/-
(SHISHIR AGARWAL)
MEMBER (TECHNICAL)

Sd/-
(K. BISWAL)
MEMBER (JUDICIAL)

Parul Sharma